

		Petitioner Steven M. Aguirre’s Motion to Compel Responses and/or Further Responses to Requests for Production (Set One) on Braidee Foote (ROA 203) is DENIED as moot regarding the request for responses and further responses. The court reserves its ruling on the request for sanctions as set forth below. Petitioner Steven M. Aguirre’s Motion to Compel Responses and/or Further Responses to Special Interrogatories (Set One) on Braidee Foote (ROA 195) is DENIED as moot regarding the request for responses and further responses. The court reserves its ruling on the request for sanctions as set forth below. The three motions to compel were filed on March 6, 2026 after 7:00 pm—one day after further supplemental responses were served to each of the subject sets of discovery. Accordingly, the motions were moot from the time of filing as to any request for an order compelling further responses. However, the request for sanctions remains an open issue. The parties should be prepared to address the issue of sanctions at oral argument.
3	Connolly – Probate; 30-2026-01538097	MOTION TO STRIKE
4	Street – Trust; 30-2024-01378180	MOTION TO ENFORCE Richard James Vanderpool’s Motion to Enforce April 22, 2016 Settlement Agreement (ROA 145) is DENIED. Pursuant to Code of Civil Procedures section 664.6 (§664.6), James moves to enforce a settlement agreement entered between himself and Petitioners Chelsea Vanderpool and Courtney Vanderpool on April 22, 2016 (the Settlement). (Because the parties share a surname, the court refers to them by their first names. No disrespect is intended.) The Settlement, which resolved prior litigation between the parties, reads in full: “Respondent shall create an irrevocable trust of which Petitioners shall be the sole beneficiaries. He shall transfer the Lemon Street apartment houses to that trust. Net income of the trust shall be paid to the beneficiaries in equal shares not less frequently than quarterly. The principal shall be distributed to the

	beneficiaries thereof or one survivor of them upon her attainment of the age of 35 years by the youngest surviving beneficiary. In the event that Respondent dies prior to distribution the beneficiaries may designate a professional fiduciary as successor Trustee. [¶] The court retains jurisdiction to enforce the settlement under §664.6, C.C.P.” (Motion, Exhibit A.) Almost eight years after the parties entered into the Settlement, Chelsea and Courtney (Petitioners) initiated this proceeding seeking an order compelling Richard to file an accounting regarding the trust (the Trust) that had been created pursuant to the Settlement. (ROA 2.) On May 6, 2025, Petitioner’s filed two new petitions. The first alleged breach of fiduciary duty against Richard in connection with the Trust. (ROA 56.) The second sought to terminate the Trust based, in part on Richard’s resignation as trustee, which Petitioner’s assert eliminates the reason for the Trust. (ROA 57.) On May 29, 2025, petitioners filed a First Amended Petition (FAP), which alleges breach of fiduciary duty and seeks to modify the terms of the Trust. (ROA 62.) Richard’s motion asks the court to enter judgment enforcing the terms of the Settlement pursuant to §664.6. He argues Petitioners breached the Settlement by filing the petition seeking to terminate the Trust. He argues that under the terms of the Settlement, the Trust was to be irrevocable and the petition to terminate the Trust breaches that provision. Section 664.6 reads, in pertinent part: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” The purpose of § 664.6 is “to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal. App. 4th 793, 809.) “The power of the trial court under [§ 664.6], however, is extremely limited. ‘Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to <i>create</i> the material terms of the settlement, as opposed to deciding what terms <i>the parties themselves</i> have previously agreed upon.’” (<i>Hernandez v. Board of Education</i> (2004) 126 Cal.App.4th 1161, 1176.) Nothing in the Settlement prohibits Petitioner’s from filing a petition with this court, asking the court to terminate the
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		Trust. Because the filing of the petition did not breach any of the terms of the Settlement, there is nothing for this court to enforce. The motion is DENIED. Petitioners are directed to give notice.
5	Jaffe – Probate; 30-2022-01239652	MOTION TO BE RELIEVED AS COUNSEL Law Offices of Sandra B. DeMeo’s motion (ROA 108) to be relieved as counsel for Matilde Jaffe is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all other parties to this action and file proof of service of the court’s order as entered. Withdrawal will be effective upon filing of proof of service of the order.
6	Rayhan – Probate; 30-2024-01401950	MOTION FOR PROTECTIVE ORDER
7	Stovall – Trust; 30-2024-01419135	MOTION TO DISMISS <i>Notice of Withdrawal filed 05/15/2026.</i>
8	Rivera - Probate; 30-2022-01246627	MOTION TO BE RELIEVED AS COUNSEL Danielian, LeCroy & Kolanjian’s motion to be relieved as counsel for Ren Chelsea Lopez (ROA 83) is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court’s order as entered. Withdrawal will be effective upon filing of proof of service of the order.